

SENATE BILL 2364

By Rose

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 21, relative to the attorney general and
reporter.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-21-1201(a), is amended by adding the following as a new subdivision:

(5) All rules transferred from the commission to the attorney general pursuant to § 4-5-226(b)(2) are repealed.

SECTION 2. Tennessee Code Annotated, Section 4-21-205(g), is amended by deleting the subsection and substituting:

(g)

(1) Unless otherwise ordered by the court for good cause shown, complaints filed with the attorney general and all documentary material or other information obtained by the attorney general pursuant to an investigation under this chapter must not be produced for inspection, copied by, or its contents disclosed to, a person other than an authorized representative of the attorney general for the purpose of investigation or prosecution without the consent of the person who produced the material or information, except that documentary material obtained by the attorney general pursuant to this section may be provided to the complainant, the respondent, their attorneys, or any state or federal law enforcement agency seeking to enforce anti-discrimination statutes.

(2) The attorney general may use copies of the documentary material or information produced in accordance with this section as it determines necessary

in the enforcement of this part, including the presentation of such material or information before a court.

(3) All other documentary material, answers to written interrogatories, and transcripts of oral testimony that are voluntarily provided to the attorney general as part of an investigation under this section must be treated as if such information was obtained pursuant to a request issued under this section if such materials were obtained pursuant to an investigative demand or similar process issued by another state or federal attorney general, obtained from a state or federal attorney general pursuant to a statutory obligation to produce such information, or provided by a person with information relevant to the subject matter of the investigation.

SECTION 3. Tennessee Code Annotated, Section 4-21-302(b)(3)(F), is amended by deleting the language "commission" and substituting "attorney general".

SECTION 4. Tennessee Code Annotated, Section 4-21-303(d), is amended by deleting:

The conciliation agreement must not be made public without the agreement of the complainant and the respondent, and the determination by the attorney general that disclosure is not required to further this chapter.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.